

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

JOINT CAUSATION AND RECORD- CITATION CHART

Submitted: December 5, 2025

Agreed legend and limits of agreement

The parties submit this chart on December 5, 2025 at the Court's direction. “Agreed event” means the date or occurrence is not disputed for summary-judgment purposes. “Competing inference” means the source is authentic but the parties disagree about what it proves. “Employer position” and “Benton position” summarize advocacy rather than establish a fact. Document references identify the record item and internal subject; they do not add page labels to the underlying filing.

The chart separates admitted merits material from the late Wynn declaration and related procedure. The Court's December 1 order governs that boundary. A procedural reference identifies what was offered, challenged, or decided; it does not convert excluded words into merits proof.

Topic	Principal admitted source	Agreed point	Disputed significance
Protected opposition	January email chain; Benton and Voss testimony	Benton raised a sex-based lead-credit concern	Whether later selection was retaliatory
Agency participation	Charge, receipt, routing log	Charge filed and notice received	Weight of notice in the selection sequence
RIF	Workbook; headcount ledger	Real savings program existed	Why Benton was chosen among alternatives

Protected activity and knowledge map

Date	Event and admitted source	Blue Cedar position	Benton position
January 17	Benton email; Voss forward; employee-relations file	Complaint was protected but did not influence scoring	Express discrimination concern began the protected sequence
February 3	Agency charge and amendment	Participation is accepted for the motion	Charge repeated opposition and anticipated retaliation
February 10	Agency receipt; Solis routing entry	Company received notice and preserved records	Receipt preceded the manager model
February 11	System open event and Pike reply	Shows awareness, not retaliatory use	Confirms the final decisionmaker received the packet
February 12	Meeting agenda and participant records	Meeting concerned preservation and staffing inputs	Pike discussed complaint timing before calibration

The parties agree Pike had general awareness of Benton's internal concern and agency matter before March 24. They disagree whether that knowledge, considered with later events, supports a causal inference. Blue Cedar emphasizes the absence of a protected-activity scoring field or instruction from Pike. Benton emphasizes the reply, meeting, six-week interval, and Pike's discretionary approval. Neither party asks the chart itself to resolve credibility or substitute a single date for the combined record.

RIF chronology and decision sequence

Date	Record event	Undisputed content	Disputed use
February 14	Baseline workbook opened	Finance target and manager sources entered	Significance of opening after notice
March 4	Initial calibration minutes	Coverage and criteria discussed; no final selection	Whether process remained neutral
March 7	Calibration version	Benton continuity and availability reduced	Consistency and motive
March 10	Exception entries	Wynn and Ibarra credits entered	Whether comparators received asymmetric treatment
March 14	Final calibration minutes	Benton and Keene uniqueness changed	Whether transferability was applied evenly
March 18	Solis variance audit	Three comparison issues flagged	Whether Pike adequately resolved them
March 21	B-7 approval	Pike approved \$618,400 model	Why he chose B-7
March 24	Letter and termination register	Benton terminated; action nondisciplinary	Whether stated reason was the real reason

The sequence is agreed; its meaning is not. Blue Cedar says it reflects ordinary evaluation of a real cost reduction. Benton says the proximity of notice, discretionary changes, unresolved variances, and approval supports pretext. The April 1 workbook date is agreed to be a modeled payroll date, not a second termination date.

Scores, written controls, and source measures

Manager	Imported and final totals	Material source or exception	Parties' positions
Benton	84 to 68	Continuity, availability, and uniqueness reduced	Blue Cedar: forward coverage; Benton: selective downward treatment
Wynn	76 to 78	Lantern continuity exception	Blue Cedar: relationship continuity; Benton: earlier-ending transition favored
Ibarra	73 to 78	Future-travel offer	Blue Cedar: expected availability; Benton: promise favored over completed travel
Keene	74 to 75	Automation uniqueness	Blue Cedar: script continuity; Benton: no transfer estimate

The written criteria allotted points for completion, continuity, credentials, availability, and role uniqueness. The version log preserved manual changes. Solis's audit flagged transition timing, future versus completed travel, and the absent automation transfer estimate. Pike approved the final entries under business continuity. Blue Cedar argues that a recorded discretionary judgment need not be the only possible judgment. Benton argues that a record of the adjustment does not establish consistent or honest application.

The parties agree Benton's completion and credential values did not fall and no refreshed source measure caused the other reductions. They also agree the retained managers had distinct current assignments while sharing core audit-manager functions.

Comparators, alternatives, and explanation sequence

Subject	Agreed record	Blue Cedar inference	Benton inference
Duty overlap	Common planning, staffing, review, remediation, and client functions	Special assignments justified different weights	Common group permits comparison of criteria
Alternatives	C-4, D-2, and E-3 retained Benton and reached the target after \$14,600 expense consolidation	Reassigning Wynn's Lantern duties, Ibarra's western travel, or Keene's automation responsibilities created distinct burdens	Benton kept Northline, Oriole, and remediation-quality work in every alternative; finance did not require her selection
Redistribution	Northline to Wynn, Oriole to Ibarra, review to Keene, meeting to Voss	Transfer plan confirms redundancy judgment	Continuing work permits comparison of retained capacity
Performance	Positive review, no discipline, no client complaint	Selection was nondisciplinary	Later performance-related detail is suspect
Explanations	March letter, April response, July interview	Later statements elaborate savings and continuity	Rationale expanded after termination

The parties agree that B-7 projected \$618,400 and that the other qualifying totals were \$624,000, \$617,000, and \$613,000. They disagree whether the associated coverage differences explain Pike's choice. They also agree the March letter used budget and redistribution, the April response added completion and availability, and the July interview used client confidence. This chart preserves the dated wording rather than merging the accounts or deciding whether they are consistent.

Admitted-versus-excluded boundary and authority map

The admitted merits record includes the January opposition, agency charge and routing, policy, workbook versions, scorecards, calibration minutes, performance measures, headcount ledger, explanation communications, seven depositions, summary-judgment papers other than the excluded submission, the parties' fact statements, and this chart. Those materials may be cited for the purposes allowed by the evidentiary rules and the Court's orders.

The two-page Wynn declaration attached to Benton's opposition is excluded/procedural only. Its existence, service chronology, challenge, and treatment may be described when explaining procedure, but its asserted statement may not be used as merits evidence under the December 1 order. The motion, opposition, proffer, and order addressing that submission remain procedural records; they do not place the excluded assertion back into the causation analysis.

Legal subject	Agreed governing source	Remaining disagreement
Summary judgment	Rule 56 and Foster	Whether the admitted whole permits a but-for inference
Protected activity	Title VII retaliation provision	Whether activity caused selection
Disclosure and supplementation	Rule 26(a)(1)(A)(i) and Rule 26(e)(1)	Parties preserve their positions described in the briefing
Use consequence	Rule 37(c)(1) and the Court's December 1 order	No disagreement about the present boundary; any later review is outside this chart